

Amendment No. 2 to SB2227

Crowe
Signature of Sponsor

AMEND Senate Bill No. 2227*

House Bill No. 2539

by deleting "(10)," in the directory language of SECTION 1(a).

AND FURTHER AMEND by deleting SECTION 1(c).

AND FURTHER AMEND by deleting SECTION 2 and substituting:

SECTION 2. Tennessee Code Annotated, Section 4-29-248(a), is amended by deleting subdivisions (5), (34), and (35).

AND FURTHER AMEND by deleting SECTION 3 and substituting:

SECTION 3. Tennessee Code Annotated, Section 4-29-249(a), is amended by deleting subdivisions (5), (9), (12), (33), and (39).

AND FURTHER AMEND by deleting SECTION 5 and substituting:

SECTION 5. Tennessee Code Annotated, Section 8-8-201(b)(1), is amended by deleting "63-17-219" and substituting "63-17-217".

AND FURTHER AMEND by deleting SECTION 7 and substituting:

SECTION 7.

(a) Tennessee Code Annotated, Section 8-50-119(b)(1)(A)(i)(a), is amended by deleting "chapter 22, part 1" and substituting "chapter 33, part 18".

(b) Tennessee Code Annotated, Section 8-50-119(b)(1)(A)(i)(d), is amended by deleting "chapter 22" and substituting "chapter 33, part 18".

(c) Tennessee Code Annotated, Section 8-50-119(b)(1)(A)(ii)(a), is amended by deleting "board for professional counselors, marital and family therapists, and clinical pastoral therapists" and substituting "commissioner of health with regard to licensure under chapter 33, part 18".

AND FURTHER AMEND by deleting SECTION 21 and substituting:

SECTION 21. Tennessee Code Annotated, Section 56-7-2401(a), is amended by deleting "§ 63-22-115" and substituting "§ 63-33-1801", and by deleting "§ 63-22-122" and substituting "§ 63-33-1801".

AND FURTHER AMEND by deleting "4, 5, 6, 7, 8, 9, 10, 11, 12, 17, 19, 23, 29, and 33" in § 63-1-120(a)(1) in SECTION 28 and substituting "3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 16, 17, 19, 23, 25, 29, and 33".

AND FURTHER AMEND by deleting "4, 5, 6, 7, 8, 9, 10, 11, 12, 17, 19, 23, 29, and 33" in § 63-1-120(b) in SECTION 28 and substituting "3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 16, 17, 19, 23, 25, 29, and 33".

AND FURTHER AMEND by deleting (b)(1)(D) and (E) in SECTION 29 and substituting:

(D) Board of examiners in psychology, created by § 63-11-102;

(E) Board of alcohol and drug abuse counselors, created by § 68-24-601; and

(F) Board of occupational therapy, created by § 63-13-216; and

AND FURTHER AMEND by deleting SECTION 30 and substituting:

SECTION 30. Tennessee Code Annotated, Section 63-1-125(e)(2), is amended by deleting "chapter 22" and substituting "chapter 33, part 18".

AND FURTHER AMEND by deleting SECTION 57 and substituting:

SECTION 57. Tennessee Code Annotated, Title 63, Chapter 14, is amended by deleting the section.

AND FURTHER AMEND by deleting subdivision (b)(5) in the amendatory language of SECTION 67 and substituting:

(5) A podiatrist, regulated pursuant to chapter 3 of this title;

AND FURTHER AMEND by deleting subdivision (b)(7) in the amendatory language of SECTION 67 and substituting:

(7) A dietitian or nutritionist, regulated pursuant to chapter 25 of this title;

AND FURTHER AMEND by deleting subdivisions (b)(19)-(22) in the amendatory language of SECTION 67 and substituting:

(19) Alcohol and drug abuse counselors, regulated pursuant to title 68, chapter 24;

(20) Occupational therapists and physical therapists regulated pursuant to chapter 13 of this title;

(21) A veterinarian, regulated by chapter 12 of this title; and

(22) A nursing home administrator, regulated pursuant to chapter 16 of this title.

AND FURTHER AMEND by deleting "3, 13, 16," and "25," from § 63-33-111 in SECTION 69.

AND FURTHER AMEND by deleting § 63-33-112(a) in SECTION 69 and substituting:

(a) As of July 1, 2026, the secretary of state shall cause the following rules to be transferred to Tenn. Comp. R. & Regs. 1200-10:

(1) Tenn. Comp. R. & Regs. 0150-01;

(2) Tenn. Comp. R. & Regs. 0870-01 and 0870-02;

(3) Tenn. Comp. R. & Regs. 1330-01;

(4) Tenn. Comp. R. & Regs. 0880-14;

(5) Tenn. Comp. R. & Regs. 0880-12;

(6) All rules promulgated by the [former] professional art therapist advisory committee of the board of examiners in psychology [repealed];

(7) All rules promulgated by the [former] professional music therapy advisory committee of the board of examiners in psychology [repealed]; and

(8) Tenn. Comp. R. & Regs. 0450-01, 0450-02, and 0450-03.

AND FURTHER AMEND by deleting "§ 63-33-1602" in § 63-33-306(a) in SECTION 71 and substituting "§ 63-13-103".

AND FURTHER AMEND by deleting § 63-33-1806(b)(2) in SECTION 84 and substituting:

(2) Alcohol and drug abuse counselors licensed under title 68, chapter 24, part 6 or operating under qualified supervision while seeking such certification from doing counseling consistent with the accepted standards of that profession.

AND FURTHER AMEND by deleting § 63-33-1904(c)(2) in SECTION 85 and substituting:

(2) Alcohol and drug abuse counselors licensed under title 68, chapter 24, part 6 or operating under qualified supervision while seeking such licensure from doing counseling consistent with the accepted standards of such profession.

AND FURTHER AMEND by deleting SECTION 87 and substituting:

SECTION 87. Tennessee Code Annotated, Section 68-1-101(a)(8), is amended by deleting the subdivision and substituting:

(8) The division of health related boards for all administrative, fiscal, inspectional, and secretarial functions of the following boards, agencies, and commissions:

- (A) Board of alcohol and drug abuse counselors;
- (B) Board of chiropractic examiners;
- (C) Board of communication disorders and sciences;
- (D) Board of dentistry;
- (E) Board of dietitians/nutritionists examiners;
- (F) Board of examiners for nursing home administrators;
- (G) Board of examiners in psychology;
- (H) Board of medical examiners;
- (I) Board of physician assistants;
- (J) Board of nursing;
- (K) Board of occupational therapy;
- (L) Board of optometry;
- (M) Board of osteopathic examination;

(N) Board of osteopathic examination's council of certified professional midwifery;

(O) Board of pharmacy;

(P) Board of physical therapy;

(Q) Board of podiatric medical examiners;

(R) Board of social worker licensure;

(S) Tennessee medical laboratory board;

(T) Board of veterinary medical examiners; and

(U) Agency of commissioner issued licenses.

AND FURTHER AMEND by deleting SECTION 105(c) and substituting:

(c) The Tennessee Code Commission is requested to reserve parts 7, 10, 11, 13, 14, 16, and 17 in title 63, chapter 33.

AND FURTHER AMEND by deleting SECTIONS 4, 12, 13, 14, 18, 19, 20, 22, 23, 24, 26, 32, 35, 37, 39, 44, 50, 53, 54, 56, 60, 61, 62, 65, 75, 79, 80, 81, 82, 83, 95, 97, 98, 99, 100, and 101 and renumbering the remaining sections accordingly.